



FINAL NOTICE: Criminal Referral (SAPS/NPA) & Immediate Regulatory Inquiry – Wilbur William Matthee

2 messages

Wilbur William Matthee <info@ethichawks.co.za>Tue, 23 Dec 2025 at 18:32

To: lebohang.mpumlwana@afrocentrichealth.com

Cc: ferfam.bruno@gmail.com, Monwabisi Kula <monwabisi.kula@afrocentrichealth.com>

Bcc: wilburmat@gmail.com

To: Ms. Lebohang Mpumlwana (Company Secretary – for the attention of The Board of Directors)

Cc: Mr. Bruno Fernandes (Lead Independent Director); Mr. Monwabisi Kula (Chief Risk Officer)

Dear Members of the Board,

This correspondence serves as my final communication prior to the formalization of criminal proceedings. I am a man of my word. If no resolution is reached by **12:00 PM tomorrow, 24 December 2025**, I will proceed directly to the **South African Police Service (SAPS)** to finalize the criminal docket for **NPA prosecution**.

The Board is hereby reminded of the specific violations documented in the **325-page Evidence Bundle** currently in your possession:

I. CRIMINAL LIABILITY

- **Medical Schemes Act (Section 66):** Criminal maladministration and the knowing suppression of the **Gexus/DMS system integration error**. This carries a penalty of up to **five years imprisonment**.
- **Occupational Health and Safety Act (Section 26 & 8):** Criminal victimization of a whistleblower and the failure to provide a safe psychosocial environment, leading to physical and mental injury. Penalty: **R100,000 fine or two years imprisonment**.
- **B-BBEE Act:** Misrepresentation of inclusive governance ("Governance Fronting") in compliance reports is a **criminal offense** under Regulation 2.10.

II. REGULATORY & FINANCIAL EXPOSURE

- **JSE Rule 3.285.4 (Market Regulation):** Reckless conduct and the improper de-escalation of a Protected Disclosure. Potential fine: **R7.5 million per contravention** and risk of delisting.
- **Employment Equity Act (Section 6 & 60):** Identity discrimination ("Wilma" incident) and failure of reasonable accommodation. Fines: **R500,000 or 10% of turnover**.
- **Basic Conditions of Employment Act (Section 34):** Unlawful deduction of **over 40% of salary**. Penalty: **200% of the amount due plus interest**.
- **Labour Relations Act (Section 187(1)(h)):** Automatically Unfair Constructive Dismissal. Mandatory compensation: **24 months' remuneration**.

THE HUMANITARIAN CRISIS

As a direct result of these violations, I am currently **destitute**, and facing **imminent eviction**. The Board's silence while the operational line filed a **malicious, retaliatory affidavit (10 December 2025)** is now a primary exhibit in my filings with the **JSE** and **FSCA**, both of which have already acknowledged receipt of my dossier.

MY FINAL WORD:

I am requesting:

1. **Immediate Hardship Payment:** To be cleared into my account by **12:00 PM tomorrow** to prevent my homelessness.

2. Written Settlement Offer.

If the deadline of **12:00 PM strictly** passes without a confirmed hardship payment, the SAPS CAS number will be generated and immediately forwarded to the JSE, FSCA, CMS, and the National Prosecuting Authority.

I will not communicate further until the deadline has passed.

Sincerely,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)

Wilbur William Matthee <wilburmat@gmail.com>
To: alunicstar@gmail.com

Tue, 23 Dec 2025 at 20:54

Wilbur Matthee
Specialist Nurse
PG Dip Health Services Management
BCur Health Nursing Management
BTech General Nursing (Psychiatry, Midwifery & Community Health)

Leadership Roles: Acting Chair – Employee Health & Safety Committee Member – Postgraduate Student Quality Committee

Ethics Hawks promotes ethical leadership, governance integrity, and psychosocial safety in organisations. This correspondence may contain confidential or legally relevant information intended only for the recipient. Unauthorised use or disclosure is prohibited.

[Quoted text hidden]